

বাংলাদেশ সুপ্রীমকোর্ট
হাইকোর্ট বিভাগ
আপীল সম্পর্কিত
ফৌজদারী

জেলা: Sirajgonj

ফৌজদারী কার্যবিধি আইনের ৪৩৫ ধারার অধীনের রিভিশন
নং

	Md. Shafiqul Islam	আবেদনকারী
মাধ্যম	Mr. Md. Anwarul Islam, Advocate	বনাম

The State

Ms. Shiuli Khanom, D.A.G along with
Mr. S.M. Emamul Musfiqur, A.A.G
Mr. Md. Humayun Karim Siddique, A.A.G

প্রতিপক্ষ

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দণ্ডদেশ

Present

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	নোট এবং আদেশ	স্বাক্ষর
	19.11.2024	In preferring the Criminal Revision under section 439 read with section 435 of the Code of Criminal Procedure there had been a delay of 147 days for which the petitioner filed an application under section 5 of the Limitation Act. Considering the facts and circumstances, the delay of 147 days in filing the revision is hereby condoned. Let records be called for and realization of fine be stayed. Let a rule be issued calling upon the opposite parties to show cause as to why the judgment and order dated 24.04.2024 passed by the learned Additional Metropolitan Sessions Judge, 2nd Court, Sirajgonj in Criminal Appeal No. 363 of 2023 dismissing the appeal and thereby affirming the judgment and order of conviction dated 14.03.2023 passed by the learned Senior Judicial Magistrate, Sirajgonj in G.R. Case No. 143 of 2019 (Bel) arising out of Belkuchi Police Station Case No. 22 dated 28.07.2019 convicting the convict petitioner under table 10 (Ka) of section 36(1) of the Narcotics Control Act, 2018 and sentencing him to suffer rigorous imprisonment for 01 (one) year and 03 (three) months and also pay fine of Tk. 5,000/- (five thousand) in default to suffer simple imprisonment of 01 (one) month more should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.	

নোট বা আদেশের ক্রমিক নং	তারিখ	নোট ও আদেশ
		Pending disposal of the rule, let the convict petitioner Md. Shafiqul Islam, son of late Hazrot Ali be enlarged on ad-interim bail for a period of 01 (one) year on furnishing bail bond to the satisfaction of the learned Senior Judicial Magistrate, Sirajgonj. The rule is made returnable within 4 (four) weeks from date. The petitioner shall put in 2 (two) sets of requisites within 7 days, for service of notice of the rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in vide HCD Rules, Chapter IV Rule 3(6).
		Kashem/B.o

দ্রষ্টব্যঃ কালা কালিত অফিস নোটর একটি ক্রমিক নম্বর এবং লাল কালিত কোর্টর আদশর আরকটি ক্রমিক নম্বর হইব।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩